

Vrijshyam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 June 2022 · WRIT - C No. 17553 of 2022 · **Writ disposed; petitioner directed to file s.127/cl.6.5 appeal within three weeks; recovery citation stayed eight weeks or until the stay application is decided, whichever is earlier.**

HEADNOTE

A recovery citation on a final assessment is to be challenged under Section 127 of the Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. Without entering the merits, the Allahabad High Court disposed of the writ, directed the petitioner to file that appeal within three weeks, required any stay application to be decided by a reasoned speaking order preferably within two weeks and the appeal preferably within six weeks, and stayed the citation dated 28.2.2022 for eight weeks or until the stay application was decided, whichever was earlier.

FACTUAL SUMMARY

The petitioner, Vrijshyam, filed a writ petition in the Allahabad High Court challenging a recovery notice and citation dated 28 February 2022 issued by the Executive Engineer, Vidyut Vitran Khand-I, Fatehpur. Counsel for the distribution licensee appeared. After a brief hearing, the petitioner's counsel agreed to challenge the final assessment by statutory appeal and asked only for interim protection until a stay application in that appeal was decided.

HOLDING-UNITS

INTERPLAY · EA2003::127

appeal against final assessment as alternate remedy

HOLDING

A recovery citation founded on a final assessment is to be challenged before the competent authority under Section 127 of the Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. Without entering the merits, the Court disposed of the writ, directed the petitioner to file that appeal within three weeks, required any stay application to be decided by a reasoned speaking order preferably within two weeks and the appeal preferably within six weeks, and directed that the citation dated 28.2.2022 not be pressed for eight weeks or until the stay application was decided, whichever was earlier. ¶ 1

FLAG The Court named the statute as the 'U.P. Electricity Act, 2003' and paired s.127 with Clause 6.5 without a sub-clause or a finding that the assessment was under s.126.

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ challenging the recovery citation was disposed of without merits and the petitioner was directed to file a Section 127 appeal before the competent authority within three weeks. ¶ 1

clause-6.5-alternate-remedy-to-writ Clause 6.5 of the Supply Code was read with Section 127 as the appropriate statutory remedy in place of the writ. ¶ 1

recovery-of-assessment-stayed-pending-s127-appeal The 28.2.2022 recovery citation was not to be pressed for eight weeks or until the stay application in the statutory appeal was decided, whichever was earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE FINAL ASSESSMENT AND THE RECOVERY CITATION DATED 28.2.2022

The Court expressly declined to enter the merits and relegated the petitioner to the statutory appeal. ¶ 1

